

5. The Clerk of the Court shall vacate all of Plaintiff's Discovery Motions calendared for January 21, April 22, and May 6, 2026. Any and all future discovery disputes shall be referred to the Discovery Referee until further orders of the Court.

6. The Parties are ordered to meet and confer and take all necessary steps to implement this order forthwith.

6. 9:00 AM CASE NUMBER: C24-01926
CASE NAME: PETER HO VS. CITY OF CITRUS HEIGHTS
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: CITY OF CITRUS HEIGHTS

TENTATIVE RULING:

Before the Court is a demurrer by the City of Citrus Heights to Plaintiff's first amended complaint. For the reasons set forth, the hearing on the demurrer is **continued** to **9:00 a.m. on February 25, 2026**.

The notice of demurrer and demurrer states that it is based on a request for judicial notice. The memorandum of points and authorities also refers to documents subject to the request for judicial notice. However, the request for judicial notice was not filed with the demurrer, nor does the Court have a proof of service on the demurrer pleadings indicating that a copy of the request for judicial notice was served on Plaintiff. The Court therefore continues the hearing to give the City the opportunity to file and serve the request for judicial notice, and for Plaintiff to file any supplemental opposition based on the documents included in the request for judicial notice.

The City shall file and serve the request for judicial notice in support of its demurrer **by January 28, 2026**. Plaintiff shall file and serve any supplemental opposition, not to exceed 15 pages, addressing the matters subject to the request for judicial notice **by February 13, 2026**.

7. 9:00 AM CASE NUMBER: C24-01992
CASE NAME: DOROTHY CAMON VS. CALIFORNIA STATEWIDE COMMUNITIES DEVELOPMENT AUTHORITY
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: CALIFORNIA STATEWIDE COMMUNITIES DEVELOPMENT AUTHORITY

TENTATIVE RULING:

The Court continues the hearing, *sua sponte*, on this Motion to February 18, 2026 at 9:00 a.m.. No appearance is required on January 21, 2026.

8. 9:00 AM CASE NUMBER: C24-02905
CASE NAME: JOSEPH SIMONI VS. AIDEN KEETON
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: KEETON, AIDEN MICHAEL

TENTATIVE RULING:

The Court continues the hearing on this Motion, *sua sponte*, to February 4, 2026 at 9:00 a.m.. No appearance is required on January 21, 2026.

9. 9:00 AM CASE NUMBER: C24-02905
CASE NAME: JOSEPH SIMONI VS. AIDEN KEETON
*HEARING ON MOTION IN RE: STRIKE PUNITIVE DAMAGES
FILED BY: KEETON, AIDEN MICHAEL
TENTATIVE RULING:

The Court continues the hearing, *sua sponte*, on this Motion to February 4, 2026 at 9:00 a.m.. No appearance is required on January 21, 2026.

10. 9:00 AM CASE NUMBER: C24-03379
CASE NAME: NAGESWARA VELINEDI VS. CAPITAL BENEFIT, INC.
*HEARING ON MOTION IN RE: EXPUNGE LIS PENDENS AND REQUEST FOR ATTORNEY'S FEES AND COSTS IN THE AMOUNT OF \$4,150.00
FILED BY: CAPITAL BENEFIT, INC.
TENTATIVE RULING:

Before the Court is Defendants Capital Benefit, Inc., Provident Trust Group FBO George S. Simmons Rollover IRA #3900656 and Lawrence E. Elkins and Norma J. Elkins, Trustees and Lawrence C. Henig, Trustee's Motion to Expunge *Lis Pendens* and Request for Attorney's Fees and Costs ("Motion").

Defendants' unopposed request for judicial notice is **granted**. (Cal. Evid. Code § 452 (c), (h).)

Initial Consideration

"[E]lectronic exhibits **must include** electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit." (Cal. R. Ct. 3.1110 (f)(4) emphasis added.) Plaintiff's declaration in support of her opposition includes two exhibits. However, it fails to include bookmarks to each of the exhibits. Likewise, Defendant Total Lender Solutions' declaration includes exhibits without electronic bookmarks. Counsel is reminded to comply with the Rules of Court going forward.

Factual Allegations and Background

On May 15, 2023, Plaintiffs obtained a loan in the amount of \$590,000 ("Loan") from Defendants Provident Trust Group FBO George S. Simmons Rollover IRA #3900656 and Lawrence E. Elkins and Norma J. Elkins, Trustees and Lawrence C. Henig, Trustee ("Beneficiary Defendants"). The Loan was secured by a deed of trust recorded against real property located at 3391 Glencoe Circle in San Ramon, California (the "Property"). Defendant Capital Benefit, Inc. was the loan servicing agent for the Beneficiary Defendants. Pursuant to the Loan, Plaintiff was required to make monthly payments of just over \$6,000. The Loan was a junior loan on the Property, as there was another 'senior loan' already in place.

Plaintiff failed to make their first monthly payment which was due on July 1, 2023. Defendants began discussions with Plaintiffs regarding the default. As the default had not been remedied, the